

Shri Mallikarjun/ Mallayya ... vs The State Through Gadag Police Station on 11 April, 2023

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CRL.P No. 100077 of 2023

IN THE HIGH COURT OF KARNATAKA, DHARWAD BENCH

DATED THIS THE 11TH DAY OF APRIL, 2023

BEFORE

THE HON'BLE MS. JUSTICE J.M.KHAZI

CRIMINAL PETITION NO. 100077 OF 2023 (482)

BETWEEN:

1. SHRI MALLIKARJUN/ MALLAYYA
VIRUPAKSHYYA HIREMATH,
AGE: 28 YEARS,
CASTE: HINDU LINGAYATH,
OCC:PRIVATE JOB/STUDENT,
TQ:KESALAPUR, DIST:KOPPAL.
2. SHRI VIRUPAKSHAYYA
S/O KOTRAYYA HIREMATH,
AGE: 60 YEARS,
CASTE: HINDU LINGAYATH
OCC:AGRICULTURE,
TQ:KESALAPUR, DIST:KOPPAL.
3. SMT. VASANTHAMMA
W/O VIRUPAKSHAYYA HIREMATH,
AGE: 55 YEARS,
OCC: HINDU LINGAYATH,
OCC: HOME MAKER,
TQ:KESALAPUR, DIST:KOPPAL.

Digitally signed by

CHANDRASHEKAR
LAXMAN
KATTIMANI

Location: HIGH
COURT OF
KARNATAKA

DHARWAD

...PETITIONERS

(BY SRI VYAS DESAI, ADVOCATE FOR
SRI JAGADISH PATIL, ADVOCATE)

AND:

1. THE STATE THROUGH GADAG
POLICE STATION,
REPRESENTED BY SPP
HIGH COURT OF KARNATAKA,
DHARWAD.

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CRL.P No. 100077 of 2023

2. SMT. SHOBHA CLAIMING HEFSELF AS
W/O MALLIKARJUNA/MALLAYYA HIREMATH,
AGE: 34 YEARS,
AT KESALAPUR VILLAGE,
OCC: HOUSE WIFE, TQ: KOPPAL,
NOW AT : PAPANASHI VILLAGE GADAG.

...RESPONDENTS

(BY SMT.GIRIJA S. HIREMATH, HCGP FOR R1
SRI KARTIK GANACHARI, ADVOCATE FOR R2)

THIS CRIMINAL PETITION IS FILED U/SEC.482 OF
CR.P.C. SEEKING TO QUASH THE ENTIRE PROCEEDINGS IN
C.C.NO.788/2019 ON THE FILE OF II ADDL. CIVIL JUDGE AND
J.M.F.C. GADAG IN CONNECTION WITH FIR CRIME NO.
113/2018 DATED 14.03.2018 FOR THE OFFENCES PUNISHABLE
U/SEC. 498A, 323, 417, 494, 495, 504, 506 R/W 34 OF IPC,
WITH RESPECT TO THE PETITIONERS/ACCUSED, INCLUDING
THEIR APPEARANCE PENDING DISPOSAL OF THE ABOVE
PETITION.

THIS PETITION, COMING ON FOR ADMISSION, THIS DAY,
THE COURT MADE THE FOLLOWING:

ORDER

The petitioners who are arraigned as accused Nos.1 to 3 have filed this petition under Section 482 of the Code of Criminal Procedure, 1973 (for short, 'Cr.P.C.') to quash the criminal proceedings initiated against them in C.C. No.788/2019 (Crime No.113/2018). The petitioners have contended that respondent No.2/complainant claiming to be the legally wedded wife of petitioner No.1 has filed complaint alleging that the marriage of petitioner No.1 and respondent No.2 was performed on 28.02.2016. Before the marriage, petitioner No.1 established to sexual relationship with her and in fact when she became pregnant, she was admitted to hospital and abortion was carried out. Alleging that after the engagement with her, petitioner No.1 has married another lady and got their marriage registered. Without disclosing the said fact, he has entered into marriage with her. Alleging harassment and cruelty, she has filed the complaint.

2. Petitioners are innocent of the offences alleged. Petitioner Nos.2 and 3 are parents of petitioner No.1 and they have no role in the alleged crime. There is an ordinate delay in filing the complaint and as such it is barred by time. There is no incriminating material to connect the petitioner to the alleged crime and prays to allow the petition.

3. Respondent No.2/complainant has filed objections. The petitioner No.1 is the husband of respondent No.2. The said fact is admitted in RPFC No.100024/2019 which was an order challenging the maintenance granted in Crl.Misc.No.153/2018. The said petition came to be rejected, whereas the connected petition filed by respondent No.2 was partly allowed and maintenance in sum of Rs.20,000/- was granted. In fact, after petitioner agreed to marry respondent No.2, he entered into physical relationship with her and when she became pregnant, he took her to a nursing home and carried out the abortion. After conducting detailed investigation, charge sheet is filed against the petitioners which makes out strong prima facie case. In M.C.No.10/2018 petitioner No.1 has sought a decree of divorce from respondent No.2. Of all the offences alleged, the offence under Section 494 of IPC and 495 of IPC are punishable with imprisonment for more than seven years. Therefore, the complaint is within time and prays to reject the petition.

4. Heard the arguments and perused the records.

5. Based on the complaint filed by respondent No.2/complainant after conducting detailed investigation, respondent No.1/police have filed charge sheet against the petitioners for the offences punishable under Sections 498-A, 323, 417, 494, 495 504 and 506 R/w 34 of IPC. The complaint and charge sheet revealed that during 2013, petitioners took alliance for the marriage of petitioner No.1 with respondent No.2 and decided to conduct the engagement on 15.11.2013. Before the engagement, petitioner No.1 contacted physical relationship with respondent No.2. In fact as a result of the said relationship, when respondent No.2 became pregnant, it is petitioner No.1 who took her to a private nursing home and got the child aborted.

6. On 28.02.2016 their marriage was performed. On 05.03.2016 respondent No.2 went to the matrimonial home and stayed there. However, the behavior of petitioner No.1 was very strange. He was not coming to home regularly. When questioned, he and other petitioners started harassing and ill-treating her. Ultimately, they drew her out of the matrimonial home. After making enquiry, respondent No.2 came to know that on 15.02.2016, petitioner No.1 and one Latha D/o Chennayya Muttinpendimath got married at Sri Bettada Malleshwar Temple. On that same day, they have got that marriage registered. Thereby without informing respondent No.2 about his earlier marriage, all the petitioners got the marriage of petitioner No.1 and respondent No.2 performed and thereby they have committed the offences punishable under Sections 498-A, 323, 417, 494, 495 504 and 506 R/w 34 of IPC.

7. After conducting detailed investigation, the concerned police have filed charge sheet against the petitioners. In fact, the statement of Doctor Smt. Vani Shivapura is recorded wherein she has stated about the admission of respondent No.2 by petitioner No.1 in her nursing home and the abortion carried out there. Respondent No.2 has also filed maintenance petition against petitioner No.1.

Against the order passed by the Trial Court, petitioner No.1 as well as respondent No.2 have approached this Court in RPFC Nos.100024/2019 and 100057/2019. By order dated 23.02.2022 this Court has allowed the petition filed by respondent No.2 and rejected the petition filed by petitioner No.1 and granted maintenance of Rs.20,000/- per month to respondent No.2.

8. In fact petitioner No.1 has also filed a divorce petition in MC No.10/2018 under Section 13 (1) (ia) (ib) and (iii) of Hindu Marriage Act, 1955 seeking decree of divorce from respondent No.2. All these material indicate that respondent No.2 is the legally wedded wife of petitioner No.1 and for the sake of this petition, petitioners are disputing their relationship with her. So far as the ground of delay is concerned, the offence punishable under Section 494 of IPC and 495 of IPC are punishable with imprisonment which may extend to seven or ten years. Therefore, the complaint is within time.

9. For the above reasons, this Court is of the considered opinion that the petition is ill-conceived and liable to be dismissed. Accordingly, I proceed to pass the following:

ORDER Petition is dismissed.

SD/-

JUDGE SSP CT-AK